

26STCV04717 26STCV04717

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-06-29

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Case Number: 26STCV04717 Hearing Date: June 29, 2026 Dept: 316

BACKGROUND

Plaintiff Safianne Liberty is

a tenant at a building owned and operated by Defendant Semref Wilshire, LLC.

Plaintiff alleges she faced a series of unwanted harassment from one of Defendant's maintenance workers. Plaintiff contends she reported this harassment to Defendant, but it did nothing to resolve the issue.

On February 13, 2026,

Plaintiff filed her original complaint against Defendant.

On February 24, 2026,

Plaintiff filed a first amended complaint ("FAC") against Defendant. The FAC alleges seven causes of action stemming from the facts alleged above.

On May 27, 2026, Defendant

filed a Motion for Leave to File Demurrer and Motion to Strike ("Motion").

On June 16, 2025, Plaintiff

filed an opposition.

On June 22, 2026, Defendant

filed a reply.

TENTATIVE

RULING

Defendant's

Motion for Leave to File Demurrer and Motion to Strike is Granted.

Defendant

is to file and serve the proposed demurrer and motion to strike attached to the declaration of Yejoo Lee within five days of the Court's ruling.

LEGAL

STANDARD

Pursuant

to Code of Civil Procedure

section 473, subdivision (a)(1), "[t]he

court may, in furtherance of justice, and on any terms as may be proper, allow

a party to amend any pleading by . . . [enlarging] the time for answer or

demurrer." "[T]he court's discretion will usually be exercised

liberally to permit amendment of the pleadings. The policy

favoring amendment is so strong that it is a rare case in which denial of leave

to amend can be justified." (Howard

v. County of San Diego (2010)

184 Cal.App.4th 1422, 1428 [internal citations omitted].) "If the motion to amend is timely made and

the granting of the motion will not prejudice the opposing party, it is error

to refuse permission to amend" (Morgan

v. Superior Court (1959) 172 Cal.App.2d 527, 530.)

DISCUSSION

Defendant requests the Court

grant leave so that it may file a demurrer and Motion to Strike. Defendant has

attached a copy of the proposed demurrer and Motion to Strike. (See Lee Decl.,

Exhs. G, H.) Defendant has also provided a supporting declaration. (See

generally Lee Decl.)

The Court finds that it is in

furtherance of justice to grant Defendant leave to file the proposed demurrer

and motion to strike. (Code Civ. Proc., § 473, subd. (a)(1).) The Court does

not find any prejudice to Plaintiff and consistent with the policy of deciding

cases on the merits, the Court will grant Defendant leave to file the proposed demurrer

and motion to strike.

CONCLUSION

For

the foregoing reasons, Defendant's Motion for Leave to File Demurrer and Motion to Strike is granted.

Defendant is to file

and serve the proposed demurrer and motion to strike submitted with the declaration of Yejoo Lee within five (5) days of the Court's ruling.